

25STCV22348 25STCV22348

County: los-angeles

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Department: 507

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Case Number: 25STCV22348 Hearing Date: July 15, 2026 Dept: 507

Tentative Ruling

Judge Nicholas F. Daum, Department 507

HEARING DATE: July 15, 2026 TRIAL DATE: NA

CASE: Avedis Zarougian v. General Motors LLC et al.

CASE NO.: 25STCV22348

MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

MOVING PARTY: Plaintiff Avedis Zarougian

RESPONDING PARTY(S): Defendant General Motors LLC.

TENTATIVE RULING:

Plaintiff's Motion for Attorneys' Fees and Costs is GRANTED IN PART.

Attorneys' fees in the amount of \$10,010.50 are awarded.

Costs are awarded in the amount of \$1,038.00.

The fees and costs are to be paid within 60 days of the date of this order.

Moving party to give notice.

BACKGROUND

This is a standard Song-Beverly or “lemon law” case brought under Civil Code section 1794.

Ultimately, the case, which used the standard AB 1755 procedure for resolving cases, settled at the mandatory mediation required by that statute.

There is no dispute that Plaintiff is the prevailing party. Under clear law, Plaintiff is entitled to an award of reasonable attorneys’ fees. (Civ. Code, § 1794(d).) Those fees must not be tied to or limited by the amount Plaintiff received in settlement. (See *Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 251.)

The parties disagree about the reasonableness of the fees and costs claimed and the appropriate lodestar amount.

Plaintiff asks for fees as follows: (a) \$20,670 for work done by attorney Aram Rostomyan (31.8 hours of work at the rate of \$650 per hour); (b) a “multiplier” of 1.5, adding an additional \$10,335 in fees; and (c) \$1,038 in costs and expenses. GM challenges much of the time expended as unreasonable or unnecessary, and also challenges the rates charged by Plaintiff’s attorney.

DISCUSSION:

A prevailing plaintiff in a Song Beverly Act case is entitled to “a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ Code., § 1794, subd. (d).) “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.” (*Mikhaeilpoor v. BMW of N. Am., LLC*, supra, 48 Cal.App.5th at p. 247 [quotation marks omitted].)

In awarding these fees, the Court applies the “lodestar” method. That requires the Court to (a) determine the actual time expended and then (b) determine whether under all the circumstances of the case the amount of actual time expended, and the monetary charge (generally, the billing rates of the attorneys involved) were reasonable. (*Id.*)

Reasonableness of the Lodestar Calculation

Plaintiff has submitted evidence of billing records. Plaintiff seeks payment based on a lodestar amount, calculated as the time billed multiplied by the hourly rates of the attorneys involved.

The Court has carefully considered the moving and opposition papers to see if the rates and the time were reasonable.

A. Attorney Rate

GM challenges the reasonableness of the rates charged by attorney Rostomyan.

The Court finds the rate charged by Mr. Rostomyan to be reasonable—with a caveat. The Court is extremely familiar with the work done and rates charged by attorneys in the Los Angeles area in Song-Beverly cases. Mr. Rostomyan’s \$650 per hour rate is at the very high end, if not the highest end, in the Court’s experience, of Song-Beverly lawyers doing similar work. Generally, attorneys charging rates this high doing similar work in Song-Beverly cases are senior partners being assisted by

other attorneys and paralegals doing the bulk of the work. Thus, while the Court cannot say that Mr. Rostomyan's rate is so unreasonable as to warrant reduction on its face, it is certainly high enough so that, at this rate, one should reasonably expect tremendous efficiencies.

Thus, while the Court does not modify Mr Rostomyan's rate (and the Court rejects GM's argument that the rate necessarily warrants reduction), the high rate does impact the Court's view of the reasonableness of the time expended by Mr. Rostomyan.

B. Attorney Time

GM also challenges the reasonableness of much of the time spent by the attorneys on the case. Here, the Court largely agrees with GM.

As noted, the Court is extremely familiar with the work of lemon law lawyers bringing similar cases. The volume of similar lemon law cases throughout the State is staggering. Accordingly, by necessity, much of any plaintiff's attorney's work in this and similar cases involves using form or template pleadings. Work at all stages is—and must be—done using forms and at extreme speed.

Indeed, in the Court's view, this and similar lemon-law cases are, and must be, arranged along industrial lines.

The need for industrial-level efficiency is particularly pronounced in this case, where all work was done by a single lawyer billing at a very high rate.

Here, Plaintiff's fee request does not reasonably reflect the routinized nature of the work. GM submitted an opposition identifying specific issues with Plaintiff's billing requests. The Court agrees with many (but not all) of GM's critiques of the specific billing requests, and has identified some of its own.

The Court's specific concerns regarding unreasonable billing are set forth below.

Date

Claimed Hours/Hourly Rate

Time after reductions by Court

Reason for Reduction

Dollar Amount of Reduction

6/19/25

1.5/\$650

.75

Excessive time for a standard client intake

\$487.50

7/30/25

1.2/\$650

.2

A complaint in a lemon law case should be a standard pleading – not one that takes 1.2 hours to prepare

\$650.00

10/26/25

1.5/\$650

.5

Initial disclosures should be standardized

\$650.00

10/27/25

.75/\$650

.1

A case management conference statement and notice of jury fees should not take $\frac{3}{4}$ of an hour for an experienced attorney to prepare

\$422.50

11/11/25

8.5/\$650

1.5

8.5 hours to review the Defendant's disclosures and document production and to discuss that with the client is not reasonable for a case of this kind. An experienced attorney should be able to quickly identify any issues in the repair history or disclosures and to confer with the client regarding same.

\$4,550.00

1/13/25

1.5/\$650

.5

1.5 hours to attend a CMC hearing is excessive; other work can and should have been done in this time

\$650.00

1/6/26

1.75/\$650

.75

Excessive time preparing for mediation, particularly given amount of other review in the case.

\$650.00

2/3/26

1.25/\$650

.25

Excessive time spent reviewing form settlement agreement with client

\$650.00

4/28/26

3.\$650

0

1.75 hours (amount billed on 4/27/26) should have been more than sufficient to prepare a form fees motion

\$1,950.00

Based on the foregoing analysis, the total amount of the Court's reduction to fees is \$10,659.50.

The Court therefore reduces the total amount of fees requested from \$20,670.00 to \$10,010.50.

C. Multiplier

The Court declines to award a multiplier. Nothing suggests the case was particularly unusual or risky. True, the case was brought on a contingency-fee basis. But the risk of that contingent representation was almost non-existent. By law, the Court's fee award cannot be tied to the amount recovered by a plaintiff. That means that, so long as Plaintiff achieved enough success on his lemon-law claim to make him a prevailing party (which, given the particular nature of Plaintiff's claims, was always very likely) Plaintiff's counsel knew or should have known that counsel would be entitled to fees for time expended.

Having carefully reviewed the record, the Court sees nothing particularly unusual, innovative, or difficult in the case. To be clear, counsel appears to have achieved an excellent result. But a multiplier is not warranted.

Costs

GM does not dispute Plaintiff's request for costs. The Court awards costs in the requested amount of \$1,038.00.

CONCLUSION:

Plaintiff's Motion for Attorneys' Fees and Costs is GRANTED IN PART.

Attorneys' fees in the amount of \$10,010.50 are awarded.

Costs are awarded in the amount of \$1,038.00.

The fees and costs are to be paid within 60 days of the date of this order.

Moving party to give notice.

IT IS SO ORDERED.

Dated: July 15, 2026 _____

Nicholas F. Daum

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.